

August 28, 2026, Probate Tentative Rulings

1. P16-16034 In the Matter of Raymond Woods Family Trust, et al.

No appearances are required. The petition for accounting and fees is granted as prayed. A proposed order has been submitted.

2. P17-16158 In the Matter of Richard Joseph Nathaniel Rouse, et al.

No appearances are required. The petition to transfer property to trust is denied. There is insufficient evidence presented to establish that the grantor intended the savings bonds at issue to be trust property.

3. P20-16779 In the Matter of Garwood Judd

No appearances are required. The Court has received notice of death of the Conservatee. The Court notes that accountings were waived on December 15, 2022.

4. P21-16890 In the Matter of John W. Chapman

No appearances are required. The petition is granted as prayed. A new proposed order should be lodged that is consistent with the amended petition.

5. PR0000824 In the Matter of Keith Dean Emmerton

Appearances are required. Conservator Monica Blake or her counsel shall update the Court on what actions, if any, she wishes to take with the instant petition requesting transfer of assets including whether an amended petition will be filed.

6. PR0000844 In the Matter of Janet Schaper

No appearances are required. Petitioner Janet Schaper's April 10, 2026, petition to enforce court-approved stipulation is denied. Code of Civil Procedure section 664.6 permits a court to retain jurisdiction to enforce the settlement. However, the court's power is limited in that it cannot resolve new issues that have arisen after settlement. See *Howeth v. Coffelt* (2017) 18 Cal.App.5th 126, 134. Here, Petitioner requests the Court to issue a temporary stay of appointment of the trustee of a special needs trust, order an accounting from 2024 to present related to the present trust, characterize certain monies and property as trust property, require bond for the proposed trustee of the special needs trust, and order that the document creating the special needs trust be reviewed and approved by this Court. These requests go far beyond the terms of the original stipulation of the parties. The stipulation by Petitioner and other beneficiaries required that Petitioner be paid \$145,000 and certain property be returned to her if it was located. Petitioner admits she has received the monetary distribution and most of the property. The remaining Karsh photograph and Einstein books have not yet been located. The requested relief far exceeds the scope of the parties' agreement and the powers of the Court to enforce that agreement. Accordingly, Petitioner's request is denied.

Respondent Schaper's request for attorney fees and costs is denied without prejudice. Any motion for the same will only be entertained after the filing of a noticed motion duly served on all interested parties.